

Sanjay Rai Alias Chintu Rai v. District Magistrate and Others

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · WRIT - C No. - 6778 of 2022 · **Liberty to file a Para 6.8 objection; coercive action stayed**

HEADNOTE

A writ to quash a recovery certificate for Rs. 3,88,451 was disposed of without any opinion on merits, with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, to be decided after hearing within the next four weeks, and with a stay on coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Sanjay Rai alias Chintu Rai sought certiorari to quash a recovery certificate dated 23 July 2021 issued by the Tehsildar, Tehsil Sadar, District Mau, for Rs. 3,88,451. The certificate was pressed on a demand of the power distribution corporation, impleaded as respondent No. 3, with the District Magistrate and the Tehsildar as the other respondents. Counsel for the corporation stated on instructions that the petitioner could file an objection against the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to electricity demand as alternate remedy

HOLDING

The writ seeking quashing of the recovery certificate is disposed of without any opinion on the merits, with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, along with a certified copy of the order. If filed in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy

The challenge to the recovery certificate was not decided on merits. The consumer was left to file an objection under Para 6.8 before the licensee, to be heard and decided within a fixed period, with coercive action stayed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 23 JULY 2021 AND THE UNDERLYING DEMAND OF RS. 3,88,451 WERE LAWFUL

The writ was disposed of without expressing any opinion on merits; the objection under Para 6.8 was left to the licensee. ¶ 1